

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 13, 2026 TIME: 8:30 A.M.

it does not intend to litigate this matter and therefore, its answer and cross-complaint are stricken. The Court declines to award the requested sanctions.

No. 24CV01806

FARR v. RUSH

**PARTITION REFEREE AMY HARRINGTON'S MOTION FOR APPROVAL OF
REFEREE REPORT AND REFEREE'S RECOMMENDATIONS AND FOR APPROVAL
OF REFEREE FEES AND COSTS**

The unopposed motion is granted.

Amy Harrington was appointed referee in this matter on September 16, 2025, with authority to partition the property by sale. The Court approved the sale on April 13, 2026. Harrington recommends reimbursement to plaintiff in the amount of \$303,826.30 to be deducted from defendant's share of the net proceeds of the sale, totaling \$499,922.78, which includes \$50,017.01 for mortgage, tax, and insurance payments made from May 2025 through February 2026. Harrington asserts plaintiff did not provide documentation reflecting the monthly HELOC payments. [Plaintiff had requested reimbursement in the amount of \$355,286.74. Defendant did not request offsets or credits.] Harrington's requested fees in the amount of \$12,367.50 based upon more than 25.70 hours of work at the rate of \$475.00/hour appear reasonable and are also granted.

Counsel for plaintiff filed two declarations, requesting that Harrington "submit an analysis and recommendation to the court for distribution of the equity produced in the anticipated sale of the Property" (Decl. of Siegel at ¶ 8.) The parties should appear to provide input to the Court as to whether a supplemental report is needed from Harrington to address this issue.

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 13, 2026 TIME: 8:30 A.M.

No. CV157538

HAINES v. FARLEY

**CELMA FARLEY'S MOTION TO CORRECT, MODIFY, AND/OR SET ASIDE THE
PROPOSED REPORT OF REFEREE**

The motion is denied. Parties to appear to discuss the status of this case in connection with the Judgment and the referee's report and recommendations.

No. 26CV00232

LAING v. STEINBERG

**APPLICATION OF KIMBERLYA. DOUGHERTY TO APPEAR PRO HAC VICE
(UNOPPOSED)**

The unopposed application of Kimberly A Dougherty to be admitted *pro hac vice* in this matter is granted.

No. 26CV01650

REY v. BLACET

PLAINTIFF'S MOTION FOR TRIAL PREFERENCE

The motion for preference is granted.

I. BACKGROUND AND MOTION

Delia Rey, who is 91 years old, ("Plaintiff" or "Rey") filed this action for medical malpractice against Precision Physical Therapy & Fitness and Andrew Blacet ("defendants"). During a physical therapy session, Blacet allegedly let go of the gait belt used to stabilize plaintiff and she fell, breaking her right elbow and sustaining other injuries. Due to her age, surgery was not an option to repair the bone fracture and she now is unable to use her walker. She also sustained vision loss. This complaint was filed May 18, 2026, and on June 11, 2026, plaintiff filed this motion for preferential trial setting pursuant to Code of Civil Procedure section 36, subdivision (a).

Plaintiff seeks preference because she is over the age of 70 (91 years old), has a substantial interest in the case as she is the only plaintiff, and because of her deteriorating health.